

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**DEFENDANT’S RESPONSE IN OPPOSITION TO PLAINTIFFS’ MOTION
TO CHALLENGE INDIGENT STATUS**

Defendant/Appellant, Marc Moszkowski, files this Response in Opposition to Plaintiffs’ “Motion in Opposition to Defendant/Appellant’s Motion to Determine Indigent Status and Waive Appellate Filing Fees” (the “Motion”), and states:

I. INTRODUCTION

Defendant respectfully submits this Response in opposition to Plaintiffs’ Motion to Challenge Indigent Status. The Motion is legally unfounded, factually incoherent, internally contradictory, and brought in bad faith for the sole purpose of obstructing appellate review.

The Clerk of Court properly determined indigency based on Defendant's sworn financial disclosure—a disclosure Plaintiffs do not even attempt to rebut with competent evidence. Instead, they offer speculation, irrelevant historical anecdotes, conjecture, and accusations that defy common sense and basic legal standards.

The record demonstrates that Defendant is indigent *because of Plaintiffs themselves*: their unauthorized litigation, their refusal to comply with Article XI of DeepGulf's Bylaws — Mandatory Advancement of Defense Expenses, and their years-long campaign of procedurally abusive filings that forced Defendant to exhaust every financial resource he possessed. Plaintiffs now seek to weaponize the very destitution they caused, attempting to block appellate review by preventing Defendant from obtaining the fee waiver to which he is legally entitled.

The Motion should be denied.

II. PLAINTIFFS PRESENT NO EVIDENCE TO REBUT INDIGENCY

Florida law requires evidence—not beliefs, impressions, or speculative assertions—to overturn a Clerk's indigency determination. Plaintiffs present none.

A. Plaintiffs rely on events from 6–14 years ago

The Motion cites the following irrelevant historical facts:

- Defendant once had professional activity more than a decade ago.
- Defendant took a single flight in 2019, *before* exhausting his resources in federal litigation.
- Defendant resided on inherited rural property acquired nearly two decades ago.

None of these past facts speak to Defendant's current ability to pay appellate filing fees in 2025. They are not "evidence"; they are distractions.

Indigency is determined *now*, not in 2007, 2013, or 2019.

B. Plaintiffs' argument that Defendant traveled in 2019 proves nothing about 2025

Plaintiffs argue that because Defendant flew from France to Florida in July 2019, he must possess financial resources in 2025. This is logically absurd.

By Plaintiffs' reasoning, if a person could afford a plane ticket six years ago, they must still have the same money today. This argument insults the Court's intelligence.

C. Plaintiffs speculate—without evidence—that Defendant “retained counsel in France”

Plaintiffs make the astonishing claim that Defendant must not be indigent because he “retained legal counsel in France.”

This assertion is false and highly misleading.

Defendant did *not* retain counsel.

Counsel was court-appointed *after* judgment, precisely because Defendant was indigent and pro se representation is forbidden in France. Plaintiffs’ Motion turns the meaning of “court-appointed counsel” on its head: the very fact of appointment *proves* indigency.

Plaintiffs’ assertion is not merely inaccurate; it is reckless.

III. PLAINTIFFS’ MOTION IGNORES THEIR OWN MANDATORY BYLAW OBLIGATION TO FUND DEFENDANT’S DEFENSE

This is the most extraordinary and damning omission in Plaintiffs’ filing.

A. Article XI of DeepGulf’s Bylaws imposed a mandatory duty to advance Defendant’s litigation expenses

DeepGulf’s Bylaws include:

“Article XI — Indemnification”

Under Article XI:

- The corporation **must** advance the legal defense costs of any director or officer sued for acts undertaken in service of the company.
- Defendant was a director and officer.
- Plaintiffs never advanced a single dollar.
- Defendant repeatedly invoked his rights under Article XI.
- Plaintiffs ignored every demand.

B. Had Plaintiffs complied with Article XI, Defendant would not be indigent

The record shows:

- Defendant spent \$83,000 on legal representation in U.S. District Court.
- Defendant prevailed.
- Plaintiffs’ misrepresentations about Toke’s alleged foreign domicile triggered an erroneous remand, nullifying Defendant’s victory.
- Defendant was then forced to litigate pro se, financially ruined by Plaintiffs’ breach of their own bylaws and their own obligations.

C. Plaintiffs created the indigency they now use as a weapon

It is difficult to imagine a more cynical litigation posture:

1. Plaintiffs sue their own director without board authorization.
2. Plaintiffs refuse to advance defense costs as required by their own Bylaws.
3. Plaintiffs' misconduct forces Defendant into destitution.
4. Plaintiffs use that destitution to block Defendant's access to the courts.

Such conduct is abusive per se.

IV. PLAINTIFFS' MOTION SERVES NO LEGITIMATE PURPOSE

A. Plaintiffs gain nothing by preventing Defendant from being declared indigent

Plaintiffs seek damages from Defendant. If Defendant had resources, they would want him to have *more*, not less. Yet they ask the Court to prevent him from obtaining a fee waiver.

Why?

B. The Motion's only purpose is to obstruct appellate review

Plaintiffs' motive is transparent:

They want to prevent Defendant from appealing the Final Judgment.

There is no other rational explanation for opposing a fee waiver that provides Plaintiffs no financial or legal benefit.

C. The Motion is therefore an abuse of process

A filing whose sole purpose is to injure or harass an opponent, or to impede judicial review, is sanctionable.

This Motion satisfies every definition of bad-faith litigation.

V. PLAINTIFFS MISSTATE THE BASIS FOR THE COURT'S PRIOR REMOTE-APPEARANCE RULING

Plaintiffs quote language from the June 12, 2025 order denying Defendant remote appearance. But they omit crucial facts:

- Defendant provided undisputed medical documentation establishing inability to travel.
- Defendant is indigent and could not afford transcontinental travel.

- Rule 2.530 required the Court to permit remote appearance absent specific findings.
- Plaintiffs urged the Court to deny remote appearance knowing Defendant could not attend.
- Defendant was therefore tried in absentia, effectively by default.

Plaintiffs now attempt to recycle this injustice to oppose indigency.

This is litigation opportunism of the worst kind.

VI. DEFENDANT'S PRESENT FINANCIAL CONDITION

Defendant has submitted a sworn financial statement. To summarize:

- Monthly income: €874.93 (approx. \$950).
- No savings.
- No liquid assets.
- Rural property under seizure through a foreign judgment engineered by one of Plaintiffs' own shareholders, thanks to the active complicity of DeepGulf, Inc.'s own chairman.
- No ability to travel, no access to a vehicle, no recent medical (2011) or dental (2001) care, and no family support.

This is indigency in any meaningful legal sense.

Plaintiffs' claim that Defendant is secretly wealthy is not only delusional—it is contradicted by the entire record of this litigation.

VII. PLAINTIFFS' REQUEST FOR A HEARING TO "QUESTION DEFENDANT UNDER OATH" IS PROCEDURALLY IMPROPER, UNNECESSARY, AND INTENDED SOLELY TO HARASS

Plaintiffs end their Motion with a startling request that "Plaintiffs may present evidence in opposition to Defendant's Motion and question Defendant under oath." This request is improper for multiple independent reasons.

First, indigency determinations are made on the basis of sworn written applications, financial disclosures, and mandatory statutory criteria—not adversarial evidentiary hearings. See §57.082, Fla. Stat.; *In re Amendments to Fla. Rules of Criminal Procedure*, 327 So.3d 882 (Fla. 2021) (emphasizing administrative nature of indigency determinations). Defendant has filed a sworn Application under penalty of perjury. Plaintiffs may not create an adversarial proceeding where none is permitted by statute.

Second, the Court has already entered a clerk's determination of indigency (Nov. 18, 2025, DIN 293). Plaintiffs are not appealing that

determination; they are simply attempting to re-litigate it through harassment. Indigency is judged by *current* ability to pay—not by irrelevant historical anecdotes or Plaintiffs’ speculative “beliefs.”

Third, Plaintiffs’ request for an in-person evidentiary hearing is not only unnecessary, it is malicious. Plaintiffs know (and argued to this Court) that Defendant is physically unable to travel and financially incapable of attending any proceeding in person. Their aim is not to present evidence but to engineer the conditions for another default or contempt finding, by demanding an in-person hearing they know Defendant cannot physically attend.

Fourth, Plaintiffs’ request to “question Defendant under oath” is an abuse of process. Defendant is already under oath through sworn declarations. Plaintiffs have no right to cross-examine a litigant on an indigency application—no such procedure exists in Florida law. This requested “hearing” is in substance a thinly veiled attempt at an unauthorized deposition, without notice, without procedural protections, and outside the normal discovery process.

Fifth, the evidence sought—Defendant’s financial condition—is entirely documentary. Every piece of relevant information is already

before the Court under penalty of perjury, and Plaintiffs have not identified a single contradictory document. What Plaintiffs seek is not evidence, but a fishing expedition and an opportunity to intimidate a pro se litigant.

For these reasons, Plaintiffs' request for a hearing should be denied as:

- procedurally unauthorized,
- unnecessary,
- retaliatory,
- designed to manufacture contempt or default, and
- a misuse of judicial process warranting sanctions.

VII. CONCLUSION

Plaintiffs' Motion is:

- unsupported by evidence,
- grounded in speculation,
- contradicted by the bylaws governing their own corporate conduct,
- motivated solely by a desire to obstruct appellate review, and
- an abuse of process.

Defendant respectfully requests that the Court:

1. **DENY** Plaintiffs' Motion to Challenge Indigent Status;

2. **RECOGNIZE** the Clerk's determination of indigency as correct; and
3. **GRANT ANY FURTHER RELIEF** the Court deems appropriate.

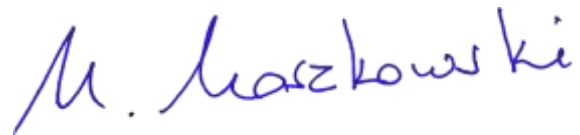
Respectfully submitted this 24th day of November, 2025.

Marc Moszkowski, Pro Se

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Le Verdos

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CERTIFICATE OF SERVICE

I hereby certify that, on this 24th day of November, 2025, a copy of this Document has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

